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File No.: EXP202315473

RESOLUTION OF RIGHTS PROCEDURE

Having viewed the complaint registered on October 10, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On October 10, 2023, a complaint was received by this Agency filed by A.A.A. (hereinafter, the complainant) against B.B.B. (hereinafter, the respondent) for not having duly attended to their right of access to the personal data of their minor child.

The complainant states that their minor child (...) at ***CENTER.1, whose responsible party is the respondent, and indicates that on September 14, 2023, they sent a burofax to ***CENTER.1 requesting "(...) that all data required regarding my child be provided to me," as well as the details of the responsible party and the data processor.

They add that on September 20, 2023, the respondent replied to the complainant denying access to their child's data and did not provide the details of the responsible party.

Along with the complaint, the following documents are submitted:

- Written request to exercise the right. In this document, dated 14/09/2023, the complainant indicates that, "as the parent of the minor," they "urge" the respondent to "provide all data required" regarding their child. They add:

"This complaint is based on the fact that, on repeated occasions, I have been denied access to said data of the minor, with this denial being justified by 'data protection.'

Likewise, through this document, I request that I be provided with the details of the responsible party and the data processor, as stipulated in Article 34 of LO 3/2018."

They conclude by stating that if access is denied, they will file a complaint with the Spanish Agency for Data Protection "to safeguard the rights of my child and my own as a parent."

It is not stated in the complaint, nor has it been indicated by the complainant, that they provided any supporting documentation regarding the circumstances mentioned in the request for access to personal data.

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Response received denying the right, dated 20/09/2023. From what is indicated in this document, the following should be highlighted:

"First of all... I must inform you that the statements made in your document are untrue... (...), as was stated on the first of the days, and we proceed to detail.

(following this, details of those visits are explained)

That said, and to further clarify, the center is aware of the existence of a judicial proceeding related to you and your ex-partner that concluded with a ruling issued in August 2023 as a result of an intrafamily conflict... as well as a series of measures against that...

Above all, we strive to safeguard the rights and interests of all minors who attend this private center, as well as the families that comprise it...

Finally, regarding any data related to minors attending our center, it will only be provided to the parents who have contracted our services or to persons expressly authorized by them, or at the request of the judicial authority, precisely in defense of their rights."

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record that the respondent has submitted any written document.

THIRD: The outcome of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on January 10, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any arguments they deemed appropriate within ten working days.

In response to this procedure, the respondent states that the complainant "(...) (...), as stated on the first of the days, overlooks the fact of the restraining order of which we were aware, as well as the existence of a proceeding in the Court of Violence against Women. (...) Furthermore, it was informed that the responsible party and the person in charge of any data related to any attendee at ***CENTER.1 was the undersigned, manager and owner of this."

The respondent continues to indicate that, in light of the existence of a judicial proceeding for gender violence and a restraining order, "above all...

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We ensure the safeguarding of the rights and interests of all minors who attend this private center, as well as the families that comprise it, informing that any specific data requested would be provided to the parents who have contracted our services or to persons expressly authorized by them, or, at the request of the judicial authority, precisely in defense of their rights."

The responding party mentions Article 15 of the GDPR, the right of access, and indicates that "In this case, the problem arises due to the existence of a restraining order in a judicial proceeding issued in a Gender Violence Court ruling, and the individual claiming to be a parent does not specify the data they require regarding their minor child. Article 1 of the LOPD establishes the purpose of the Law to protect the fundamental right of individuals to the protection of their personal data, and exceptionally, in a case as delicate as this, it was considered that the response provided was adequate and in accordance with the law.

This center has never refused to provide the data it processes, however, in this case, we understood that it could be contradictory to a firm judicial ruling as it was unknown for what purpose and end the request was made generically to know data about the minor, without specifying what specific data was wanted and to have access to, and in addition to the interested party making the request, this party has no data."

FOURTH: After examining the document submitted by the responding party, it was forwarded to the claiming party, so that, within ten business days, they could submit any allegations they deemed appropriate, not making any allegations within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month and to prove that they had provided the claimant with the due response.

The result of this forwarding did not allow for an understanding that the claims of the claiming party were satisfied. Consequently, on January 10, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint presented was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of Individuals in Relation to Personal Data Protection

The rights of individuals in relation to personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the data subject's exercise of their rights, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

Regarding the right of access, the GDPR establishes in its Article 15 the following:

“1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal

data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.”

2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

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3. The data controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee based on administrative costs for any additional copies requested by the data subject. When the data subject submits the request electronically, and unless they request otherwise, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in section 3 shall not adversely affect the rights and freedoms of others.

The purpose of the right of access is to allow data subjects to know how their data is processed and the consequences of such processing.

Regarding the subject matter, the exercise of the right shall always refer to the personal data concerning the data subjects who submit the corresponding request and allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data that concerns them and that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

Like the other rights of the data subject, the right of access is a personal right. Thus, this right must be exercised by the data subjects themselves.

However, it is accepted that the request may be made on behalf of the data subject by a third party, such as a representative or legal guardian on behalf of minors. In such cases, it may be necessary to verify the identity of the person authorized to exercise the right of access and the authorization to act on behalf of the data subject, collecting the appropriate documentation in this regard, if necessary, and always keeping in mind that making personal data available to a person who does not have the right to access it may constitute a violation of personal data (“Guidelines 01/2022 on the rights of data subjects - Right of access”).

This means that no person may access another's personal data unless they act on their behalf and with proper authorization for this specific purpose.

Regarding the exercise of the right of access on behalf of children, specifically, the aforementioned

“Guidelines 01/2022 on the rights of data subjects - Right of access” state the following:

“83. Minors deserve specific protection regarding their personal data...

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84. Children are data subjects in their own right, and as such, the right of access belongs to the child. Depending on the maturity and capacity of the child, the child may need a third party to act on their behalf, for example, the holder of parental responsibility.

85. The best interests of the child must be a primary consideration in all decisions made regarding the exercise of the right of access in the context of children, particularly when the right of access is exercised on behalf of the child, for example, by the holder of parental authority.

86. Due to the special protection of children's personal data contained in the GDPR, the data controller shall take appropriate measures to prevent any disclosure of a minor's personal data to an unauthorized person...

87. Finally, the right of the holder of parental responsibility to act on behalf of the minor should not be confused with cases, outside of data protection legislation, where national legislation may grant the holder of parental responsibility the right to request and receive information about the child (for example, the child's performance in school)."

In summary, in the case of a request for access to a minor's data made by their parent or legal representative, the following aspects should be assessed:

- Firstly, whether the identity of the requester and their status as the legal representative of the minor is duly accredited. When the authorization is not duly accredited, any disclosure of the minor's personal data should be avoided due to the special protection of such data established in the GDPR.
- Whether the exercise of the right is carried out on behalf of the minor or as a right of the parent or legal representative.
- The best interests of the minor must prevail when making the corresponding decision, even when the legal representative acts on behalf of the minor.

When the legal representative requests access to the minor's personal data in their own interest, the limitations on the right of access provided for in section 4 of the aforementioned Article 15 of the GDPR shall apply in such a way that the possibility of obtaining a copy of the personal data shall not adversely affect the rights and freedoms of the child.

The EDPB, in its document “Guidelines 01/2022 on the rights of data subjects - Right of access, Version 2.0, adopted on 28/03/2023, states the following regarding the limits of the right of access:

“Limits and restrictions

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The GDPR allows for certain limitations on the right of access. There are no other exemptions or exceptions...

In accordance with Article 15, paragraph 4, the right to obtain a copy shall not adversely affect the rights and freedoms of others. The EDPS believes that these rights must be taken into account not only when granting access by providing a copy but also if access to the data is facilitated by other means (for example, on-site access)... The data controller must be able to demonstrate that the rights or freedoms of others would be adversely affected in the specific situation. The application of Article 15, paragraph 4, should not lead to the total denial of the data subject's request; it should only result in the exclusion or illegibility of those parts that may have negative effects on the rights and freedoms of others.

(...)

There may also be restrictions on the right of access in the national legislation of the Member States, in accordance with Article 23 of the GDPR and its exceptions. Data controllers wishing to rely on such restrictions must thoroughly check the requirements of national provisions and take note of the specific conditions that may apply. Such conditions may consist of the right of access being temporarily delayed or the restriction only applying to certain categories of data.

“6.2 Article 15, paragraph 4, of the GDPR

(...)

170. ...in principle, it can be considered that any right or freedom based on Union or Member State law invokes the limitation of Article 15, paragraph 4, of the GDPR⁹⁶. Thus, the right to the protection of personal data (Article 8 of the Charter of Fundamental Rights of the European Union) can also be considered an affected right in the sense of Article 15, paragraph 4, of the GDPR. Regarding the right to obtain a copy, the right to the protection of third-party data is a typical case where the limitation must be assessed. (...)

171. By "third parties," it is understood to mean any other person or entity, apart from the data subject, exercising their right of access...

172. The general concern that the rights and freedoms of third parties may be affected by the compliance with the access request is not sufficient to invoke Article 15, paragraph 4, of the GDPR. The data controller must be able to demonstrate that, in the specific situation, the rights or freedoms of third parties would indeed be affected.

(...)

173. With regard to Recital 4 of the GDPR and the justification of Article 52, paragraph 1, of the Charter of Fundamental Rights of the European Union, the

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The right to the protection of personal data is not an absolute right. Therefore, the exercise of the right of access must also be weighed against other fundamental rights in accordance with the principle of proportionality. When the assessment of Article 15, paragraph 4, of the GDPR demonstrates that compliance with the request has negative effects on the rights and freedoms of other participants (phase 1), the interests of all participants must be weighed considering the specific circumstances of the case and, in particular, the likelihood and severity of the risks present in the communication of the data. The data controller must attempt to reconcile the conflicting rights (phase 2), for example, by applying appropriate measures that mitigate the risk to the rights and freedoms of others. As emphasized in Recital 63, the protection of the rights and freedoms of others under Article 15, paragraph 4, of the GDPR should not result in the refusal to provide all information to the data subject. This means, for example, that when applying the limitation, information relating to other individuals should be rendered unreadable to the extent possible rather than refusing to provide a copy of the personal data. However, if it is impossible to find a solution to reconcile the relevant rights, the data controller must decide in a subsequent step which of the conflicting rights and freedoms prevails (phase 3).

Therefore, when deciding on the right of access exercised in these cases, it is necessary to evaluate the context, taking into account the specific risks in each case for the minor.

Likewise, with the provision of certain personal data of a minor, such as information regarding the address, the rights of the individuals with whom the minor resides could also be affected, and their interests must also be weighed before deciding whether to grant the right of access requested by one of their legal representatives.

V

Conclusion

In the present case, the following circumstances must be taken into account:

- The present proceedings concern the claim made by the claimant, who considers that the right

exercised by them to access the personal data of their minor child has not been addressed. However, it is not recorded in the proceedings, nor has it been indicated by the claimant, that they have proven their identity and the family relationship they invoke before the responding party.

- In view of the request for the right of access made to the responding party, it is not properly specified whether the claimant was acting in the capacity of legal representative of the minor whose data is affected by the access request or in their own name and interest as the legal representative.

In the request submitted, dated 14/09/2023, the claimant requests that "all required data" of their child "as the parent of the minor" be provided, and concludes by stating that, in the event that...

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denies the right, will file a complaint with the AEPD "to safeguard the rights of my child and my own as a parent."

In any case, the concurrent circumstances and the risks that providing a copy of the data could entail for the minor or for other third parties, including their safety and well-being, must be evaluated, which requires weighing the conflicting rights and interests.

In the case in question, according to the respondent, the information requester is subject to a restraining order issued in a Gender Violence Court ruling, a circumstance that motivated the denial of access. These statements have not been questioned or denied by the complainant, despite being communicated and notified by this authority, granting a hearing period for them to express their views on the matter, and no response has been received to date.

In light of these facts, providing information about the minor could have negative consequences and put the safety of the minor and their mother at risk, thereby contravening the protective purpose of the restraining order.

It should also not be forgotten the provision established in Article 63 of Organic Law 1/2004, of December 28, on Comprehensive Protection Measures against Gender Violence, regarding the protection of data for this group: "In actions and procedures related to gender violence, the privacy of victims will be protected; in particular, their personal data, that of their descendants, and that of any other person under their guardianship or custody."

From the reading of this article, a special protection of the personal data of victims and their descendants is inferred, so allowing access to the requested information when the respondent is aware of a restraining order would go against legal provisions and the purpose of the protective measures established by the court.

In accordance with the above and considering the need to protect the rights and freedoms of the mother and the minor, the denial of access to the requested data is fully justified. This decision is further strengthened by the generic access requested by the complainant, who does not specify the required data but rather makes a brief request for all personal data pertaining to their child held by the respondent. Therefore, the denial made by the respondent complies with personal data protection regulations.

Notwithstanding the above, and despite having concluded that there is sufficient justification for the denial of the right agreed upon by the respondent, it is of interest to this AEPD to warn the same that in the evaluation of the access rights that may be exercised by the legal representatives of minors, it is not essential that the requester has directly contracted the services provided by the respondent, which was also expressed as a reason for the denial of access in the response letter sent to the complainant.

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Consequently, based on the above, it is appropriate to dismiss the complaint that gave rise to this

procedure.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the complaint filed by A.A.A. against B.B.B.

SECOND: TO NOTIFY this resolution to A.A.A. and B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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